

63 3 Government Gazette 29 December 2005 No. 3566 Act No. 15, 2005 ESTATES AND SUCCESSION AMENDMENT ACT, 2005 or after the date of commencement of this Act, are governed by the Administration of Estates Act, 1965 (Act No. 66 of 1965). (2) The estate of a person who died before the date of commencement of this Act which was administered, immediately before that date, in terms of the Native Administration Proclamation, 1928 or the Administration of Estates (Rehoboth Gebiet) Proclamation, 1941, must be liquidated and distributed and any matter relating to the liquidation and distribution of such estate must be dealt with as if this Act had not been passed. (3) Despite subsection (2), if, in the case of an estate referred to in that subsection the liquidation and distribution of which immediately before the commencement of this Act was being administered in terms of the Native Administration Proclamation, 1928 or the Administration of Estates (Rehoboth Gebiet) Proclamation, 1941 and which has not been completed by the date of such commencement, any person having an interest in the estate in writing requests the Master of the High Court to administer the estate in question in terms of the Administration of Estates Act, 1965, the Master must (a) in writing request the magistrate in charge of the supervision of the estate in question to transfer such estate to the Master's supervision and control; and (b) upon receipt of the relevant documents and information pertaining to the estate in question exercise jurisdiction in respect of the estate in terms of the Administration of Estates Act, 1965. (4) Upon receipt of a request of the Master in terms of subsection (3)(a), the magistrate concerned must forthwith provide the Master with all documents pertaining to the estate in question which have been lodged with the magistrate or which are under his or her control as well as a written report in relation to any matter concerning the estate of which the magistrate has knowledge and which is reasonably required for assisting the Master in the performance of any function under the Administration of Estates Act, 1965 in relation to the estate.

Amendment of Administration of Estates Act, 1965

4. The Administration of Estates Act, 1965 (Act No. 66 of 1965) is amended by the insertion after section 4 of the following section: "Minister may assign functions of Master to magistrates

4A. (1) The Minister after consultation with the Master and the Chief of lower courts, may by notice in the Gazette - (a) determine that any powers or functions vested in or assigned to the Master by this Act, as are specified in the notice, be vested in and assigned also to a magistrate for the purpose of assisting in the performance of the Master's functions under the Act in relation to estates contemplated in section 18(3); and (b) determine conditions or restrictions in relation to the exercise of any powers or performance of any functions by magistrates referred to in paragraph (a) and prescribe procedures to be followed in connection therewith.